

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

JOEL POLANCO,

Index No.:

Plaintiff,

-against-

**VERIFIED COMPLAINT**

CITY OF NEW YORK, DETECTIVE  
ALEXANDER KALOGIROS (Shield No  
4913), DETECTIVE IVAN RODRIGUEZ  
(Shield No. 3235), DETECTIVE THOMAS  
PESICK (Shield No. 7024), and OFFICERS  
JOHN DOE, individually and in their official  
capacities,

Defendants.

Plaintiff, JOEL POLANCO, by and through his attorneys, **Fisher, Byrialsen &  
Kreizer, PLLC**, complaining of the defendants herein, respectfully shows the Court and alleges:

**PRELIMINARY STATEMENT**

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1988, for the wrongful acts of Defendants CITY OF NEW YORK, DETECTIVE ALEXANDER KALOGIROS (Shield No 4913), DETECTIVE IVAN RODRIGUEZ (Shield No. 3235), DETECTIVE THOMAS PESICK (Shield No. 7024), and OFFICERS JOHN DOE, as Officers of the New York City Police Department, acting under color of state law and pursuant to their authority, in violation of Plaintiff's rights secured by the Civil Rights Act of 1871, 42 U.S.C. §§ 1981, 1983, 1985 and

1988; by the United States Constitution, including its Fourth, Fifth, Eighth, and Fourteenth Amendments; and by the laws and Constitution of the State of New York.

### **JURISDICTION**

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1988, and the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, and the constitutional, statutory, and common laws of the State of New York.

### **VENUE**

3. The basis of venue is the place of the occurrence.

### **NOTICE OF CLAIM**

4. Plaintiff, JOEL POLANCO, filed a Notice of Claim on March 26, 2014 with the Comptroller of the City of New York within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

### **TRIAL BY JURY**

5. Plaintiff demands a trial by jury on each and every one of his claims as pleaded herein.

### **PARTIES**

6. At all times relevant hereto JOEL POLANCO was and is a citizen of the United States and was residing in the City and County of New York at the time of the incident.

7. At all times relevant hereto defendant The City of New York (hereinafter, "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs, and controls the New York City Police Department, which employs the other named Defendants.

8. At all times relevant to this action, DETECTIVE ALEXANDER KALOGIROS (Shield No 4913), DETECTIVE IVAN RODRIGUEZ (Shield No. 3235), DETECTIVE

THOMAS PESICK (Shield No. 7024), and OFFICERS JOHN DOE are and were officers employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. They are being sued in both their individual and official capacities.

9. At all times relevant hereto and in all their actions described herein, DETECTIVE ALEXANDER KALOGIROS (Shield No 4913), DETECTIVE IVAN RODRIGUEZ (Shield No. 3235), DETECTIVE THOMAS PESICK (Shield No. 7024), and OFFICERS JOHN DOE were acting under color of statutes, ordinances, regulations, policies, customs, and usages of the NYPD and NYC, pursuant to their authority as employees, servants, and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents, and police officers.

10. NYC was responsible for the hiring, training, supervision, discipline, retention, and promotion of the police officers, sergeants, and/or employees of the NYPD. They are being sued both in their individual and official capacity.

### **FACTS**

11. On February 28, 2014 at or near 5:15 PM, Plaintiff and a friend were dinning at a Wendy's restaurant located at 3939 Broadway near 165<sup>th</sup> Street in the City, County, and State of New York.

12. At the time and prior to his arrest, Plaintiff had ordered a food item off of the menu and received change for his purchase in the amount of \$1.50 US Currency.

13. At the time and prior to his arrest, Plaintiff had not passed any items or objects to, or had any substantive conversation with any other persons in the Wendy's restaurant other than his friend and the Wendy's cashier.

14. At the time and prior to his arrest, Plaintiff did not have prescription medications of any kind, including but not limited to Oxycodone or Percocets, on his person or in near his vicinity.

15. At the time and prior to his arrest, Plaintiff had been sitting in the restaurant for approximately 10 minutes when DETECTIVE ALEXANDER KALOGIROS (Shield No 4913), DETECTIVE IVAN RODRIGUEZ (Shield No. 3235), DETECTIVE THOMAS PESICK (Shield No. 7024), and/or OFFICERS JOHN DOE approached Plaintiff without suspicious, reason, or probable cause told Plaintiff to get up, and leave the restaurant with them.

16. At the time and prior to his arrest, Plaintiff complied with the Officer(s) demands and when he exited the restaurant, he was handcuffed and placed under arrest.

17. At the time and after his arrest, Plaintiff was subject to a full search and Officers found only \$1.50 in US Currency on his person, the change from his meal purchase, and no prescription medications of any kind.

18. At the time and after his arrest, Plaintiff asked the Officer(s) why he was being placed under arrest, he was told by an Officer "you are going to see the guy in the van you passed something too."

19. At the time and after his arrest, Plaintiff denied knowing what the Officer was talking about.

20. At the time and after his arrest, the Officers opened the door to a patrol van, and inside was an individual known as Tim York [M14618182].

21. At the time and after his arrest, Plaintiff was not aware of any individual by the name of Tim York and did not recognize the individual identified as Tim York handcuffed in the police van.

22. At the time and after his arrest, the individual known as Tim York [M1461818Z] clearly and unequivocally told the Officers "That's not the guy, that's not the guy that sold me the drugs. That's the wrong guy."

23. At the time and after his arrest, Officers blatantly disregarded Tim York's [M1461818Z] remarks exonerating Plaintiff and told Tim York to "Shut Up."

24. At the time and after his arrest Plaintiff was placed in the patrol van.

25. Plaintiff was transported in the patrol van for approximately 4 hours and finally taken to the 33<sup>rd</sup> Precinct near or around 9:30 to 10 pm.

25. Plaintiff was then transported to the 25<sup>th</sup> Precinct at approximately 1:00 am on February 29, 2014.

26. Plaintiff was not arraigned until after 12:01 am on March 1, 2014.

27. At the time of his arraignment, Plaintiff was told for the first time that he was charged with PL 220.34(1), Criminal Sale of a Controlled Substance in the Fourth Degree and PL 220.31, Criminal Sale of a Controlled Substance in the Fifth Degree.

28. Bail was set in the amount of \$10,000 bond and \$5,000 cash.

29. Unable to make bail, Plaintiff was transported to Riker's Island and was incarcerated in the CP5 7MOD unit until the case was dismissed and sealed by motion of the District Attorney's Office on March 6, 2014.

30. Upon Plaintiff's release, Plaintiff was ostracized from his family for having been arrested. His mother kicked him out of the house and Plaintiff was caused to be homeless temporarily until he mended relations with his family.

31. As a result of his false arrest and imprisonment and malicious prosecution, Plaintiff was caused great embarrassment, humiliation, and suffered from emotional, mental, and

psychological distress, pain, and suffering.

32. On or about March 26, 2014 and within ninety (90) days of the incident, a Notice of Claim was served upon NYC on behalf of Plaintiff.

33. At least thirty (30) days have elapsed since said demand and/or claim upon which this action is in part predicated was presented to NYC for adjustment and NYC has neglected and/or refused to adjust and/or make payment.

34. This action is commenced within one (1) year and ninety (90) days of the occurrence herein.

**FIRST CLAIM FOR RELIEF:  
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

35. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

36. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of state law.

37. All of the aforementioned acts deprived Plaintiff of the rights, privileges, and immunities guaranteed citizens of the United States by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

38. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

39. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

40. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

41. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. §1983; and by the laws and Constitution of the State of New York, for which the Defendants are individually and jointly liable.

**THIRD CLAIM FOR RELIEF:  
FALSE ARREST**

42. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

43. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper, and false seizure and arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated, and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege, or consent.

44. As a result of their false arrest, Plaintiff was subjected to humiliation, mental anguish, ridicule, and disgrace and was deprived of their liberty. Plaintiffs were discredited in the minds of many members of the community.

45. All of the aforementioned acts of the Defendants constituted false arrest under the laws of the State of New York and the Defendants are liable for said damage.

**FOURTH CLAIM FOR RELIEF:**  
**FALSE IMPRISONMENT**

46. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

47. As a result of their false imprisonment, Plaintiff was subjected to humiliation, ridicule, mental anguish and disgrace and was deprived of their liberty. Plaintiff was discredited in the minds of many members of the community.

48. All of the aforementioned acts of the Defendants constituted false imprisonment under the law of the State of New York and the Defendants are liable said damage.

**FIFTH CLAIM FOR RELIEF:**  
**MALICIOUS PROSECUTION**

49. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

50. By the actions described above the defendants maliciously and without probable cause, prosecuted the Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated their statutory and common law right as guaranteed by the laws and constitution of the State of New York.

51. As a result of the foregoing, Plaintiff were deprived of his liberty, suffered great humiliation, anguish, costs and expenses and was otherwise damaged and injured.

**SIXTH CLAIM FOR RELIEF:**  
**INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

52. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

53. Defendant police officers engaged in extreme and outrageous conduct beyond all



possible bounds of decency when they beat, harassed and threatened the Plaintiffs.

54. Defendants' extreme and outrageous conduct was intended to inflict severe distress upon the Plaintiffs.

55. The Defendant officers' outrageous conduct did inflict severe distress upon Plaintiff, which caused Plaintiff to suffer anxiety and mental anguish.

56. All of the aforementioned acts of the Defendants constituted intentional infliction of emotional distress under the law of the State of New York and the Defendants are liable for said damage.

**SEVENTH CLAIM FOR RELIEF:  
FAILURE TO INVESTIGATE**

57. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

58. All of the aforementioned acts of Defendants, their agents, servants, and employees constituted a complete failure to investigate whether Plaintiff, had any involvement whatsoever in the case, or whether, as with what actually happened, he was an innocent bystander, when the defendant Police Officers arrested him.

59. In the absence of any exigent circumstances, and absence of any overt acts of criminality permitting probable cause for arrest, the defendant Police Officers' complete failure to investigate fell far short of a complete investigation where the law enforcement officers would not have been unduly hampered if they had waited to obtain more facts before seeking to arrest the Plaintiff, and where a minimal further investigation would have exonerated the Plaintiff.

60. As a result of the foregoing, Plaintiff was deprived of his liberty, endured great humiliation, anguish, costs and expenses and was otherwise damaged and injured.

**EIGHTH CLAIM FOR RELIEF:  
FAILURE TO INTERVENE  
UNDER FOURTH AMENDMENT – 42 U.S.C. § 1983**

61. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

62. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the police department employing unjustified and excessive force against a civilian or falsely arresting a civilian.

63. The defendant officers were present near 3939 Broadway and 165<sup>th</sup> Street in the City, County, and State of New York and in the vicinity of Plaintiff's arrest and witnessed other officers, *inter alia*,

- a. Search Plaintiff without cause
- b. Falsely arrest Plaintiff, and
- c. Use unlawful force against plaintiff, including pushing Plaintiff into a police car and punching her.

64. The search of Plaintiff's person was clearly made without probable cause, reasonable suspicion, or any other legal justification, yet defendants failed to take any action or make any effort to intervene, halt or protect plaintiff from the illegal search.

65. Defendants' violated Plaintiff's constitutional rights by failing to intervene in the illegal search of Plaintiff, his arrest or Defendants' clearly unconstitutional use of force that resulted in injury and damages.

66. All of the aforementioned acts of Defendants constituted a violation of Plaintiff's civil rights provided to him under the United States Constitution and 42 U.S.C. § 1983, 1985, and 1986.

**NINTH CLAIM FOR RELIEF:**  
**MUNICIPAL LIABILITY**

67. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

68. The acts complained of herein were carried out by the Defendant officers in their capacities as police officers, employees and officials pursuant to the customs, policies, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said departments.

69. Prior to February 28, 2014, NYC and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the Constitutional rights of persons in NYC, which caused the violation of Plaintiff's rights.

70. It was the policy and/or custom of NYC and NYPD to inadequately and improperly train and supervise its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

71. It was the policy and/or custom of NYC and NYPD to inadequately and improperly investigate complaints of misconduct against police officers filed by persons in police custody, and acts of misconduct were instead tolerated by NYC, including, but not limited to the following incidents: assault and battery, harassment, negligence, intentional infliction of emotional distress and deliberate indifference to medical needs.

72. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of Plaintiff.

73. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the proximate cause of the constitutional violations suffered by Plaintiffs as

alleged herein.

74. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.

75. As a result of the above described policies and customs, police officers of NYPD, including the defendant officers, believed that their actions would not be monitored by supervisory officers and that their own misconduct would not be investigated or sanctioned, but instead would be tolerated.

76. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiffs.

77. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate officers and were directly responsible for the violation of Plaintiffs' constitutional rights.

78. Defendants NYC, as municipal policymakers in the training and supervision of Defendant police officers/employees, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom from deprivation of Liberty without Due process of law in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

79. All of the foregoing acts by Defendants deprived Plaintiffs of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from unreasonable search and seizure under the Fourth and

Fourteenth Amendments to the United States Constitution;

- c. To be protected against violations of their civil and constitutional rights;
- d. Not to have cruel and unusual punishment imposed upon them; and
- e. To receive equal protection under the law.

**TENTH CLAIM FOR RELIEF:  
CONSPIRACY TO INTERFERE WITH CIVIL RIGHTS  
UNDER 42 U.S.C. § 1983, 1985, 1986**

80. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

81. All the defendants, acting with each other individually and on behalf of and under the auspices and control of the City, and under color of law, conspired to injure plaintiffs in his person and property and deprive plaintiff of their First, Fourth, Fifth and Fourteenth Amendment rights. The defendants jointly caused such deprivation of rights by acting in concert to disseminate false information concerning the plaintiffs and by disseminating false information that lacked any reasonable basis or probable cause to support it that the plaintiffs committed a crime, and/or to charge them with a crime, and/or to arrest them.

82. The defendants further deprived the plaintiffs of their due process rights specifically by conspiring to and assisting in the arrest of the plaintiffs without probable cause and participating in the prosecution of plaintiffs; by denying the plaintiffs their First, Fourth, Fifth and Fourteenth Amendment rights via a conspiracy to deprive the plaintiffs of their liberty and taking their property without due process and compensation; conspiring together to cover up the misconduct they committed; and preventing the plaintiffs from being compensated for their wrongful arrest, for the loss of their constitutional rights, the loss of their job and for the

emotional harm they incurred.

83. The aforesaid actions by the defendant police officers were done pursuant to an official municipal policy or custom of the city and state, which policy involved the indiscriminate detention, interrogation, intimidation, denial of medical attention, excessive force and prosecution of individuals who were not engaged in criminal conduct, and for the purpose of thwarting the fair administration of justice.

84. The defendants' failure to stop these wrongful acts and actions constitutes a breach of their duty to do so under 42 U.S.C. § 1986.

85. The defendants knew or should have known that the misconduct and false and fabricated accusations and/or charges against plaintiffs were violative of his First, Fourth, Fifth and Fourteenth Amendment rights to due process and equal protection, and were tantamount to unequal protection under the law, in violation of the plaintiff's fundamental rights under the Constitution.

86. Said defendants had the power to prevent the continued due process violations against the plaintiff, yet had failed to prevent the dissemination of false information and/or to dismiss the fabricated accusations and charges against plaintiffs, and/or to protect the plaintiffs from the unwarranted and potential harm and penalties of said charges.

87. Defendants herein, their agents, servants and employees, motivated in part by racial and/or ethnic animus, conspired to deprive plaintiffs of their federal civil and constitutional rights, in violation of 42 U.S.C. § 1985 and the laws and Constitution of the State of New York

88. All of the aforementioned acts of Defendants constituted a violation of Plaintiffs' civil rights provided to him under the United States Constitution and 42 U.S.C. § 1983, 1985, and 1986 and the laws and Constitution of the State of New York.

**PRAYER FOR RELIEF**

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

1. A monetary sum that exceeds the jurisdictional limits of all lower courts that might otherwise have jurisdiction herein;
2. The costs and disbursements of this action; and
4. Such other and further relief as this Court deems just and proper.

DATED:       New York, New York  
              June 23, 2014

Respectfully submitted,

  
Kaitlin F. Nares, Esq.

Fisher, Byrialsen & Kreizer, PLLC  
*Attorney for Plaintiff*  
291 Broadway, Suite 709  
New York, New York 10007  
(212) 962-0848

INDIVIDUAL VERIFICATION

STATE OF NEW YORK )

) SS.:

COUNTY OF NEW YORK )

JOEL POLANCO, being duly sworn, deposes and says:

That deponent is the Plaintiff in the within action; and deponent has read the foregoing Summons and Verified Complaint and knows the contents thereof; that the same is true except for as to those matters therein stated to be upon information and belief, and as to those matters, deponent believes them to be true.

X *Joel Polanco*  
JOEL POLANCO

STATE OF NEW YORK )

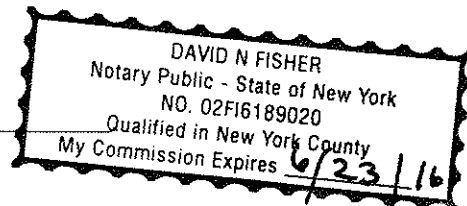
) SS.:

COUNTY OF NEW YORK )

I CERTIFY that on June 22, 2014, JOEL POLANCO, personally came before me and acknowledged under oath, to my satisfaction, that this person:

- (a) is named in and personally signed the document; and
- (b) signed, sealed, delivered this document as his act and deed.

*DF*  
Notary Public





SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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JOEL POLANCO,

Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE ALEXANDER KALOGIROS (Shield No 4913),  
DETECTIVE IVAN RODRIGUEZ (Shield No. 3235), DETECTIVE THOMAS PESICK  
(Shield No. 7024), and OFFICERS JOHN DOE, individually and in their official  
capacities,

Defendants.

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VERIFIED COMPLAINT

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**FISHER, BYRIALSEN & KREIZER, PLLC**

**Attorneys for: Plaintiff**  
**291 Broadway, Suite 709**  
**New York, NY 10007**  
**(212) 962-0848**

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Service of a copy of the within is hereby admitted

Dated: June 23, 2014

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SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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JOEL POLANCO,

Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE  
ALEXANDER KALOGIROS (Shield No  
4913), DETECTIVE IVAN RODRIGUEZ  
(Shield No. 3235), DETECTIVE THOMAS  
PESICK (Shield No. 7024), and OFFICERS  
JOHN DOE, individually and in their official  
capacities.

Defendant.

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Index No.:

Plaintiff designates NEW YORK  
COUNTY as the place of Trial.

The basis of venue is: CPLR § 504(3);  
Location of Incident and Plaintiff's  
Residence

SUMMONS

**TO THE ABOVE-NAMED DEFENDANTS:**

You are hereby summoned to answer the verified complaint in this action and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear to answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

Dated: New York, New York

June 23, 2014



Kaitlin F. Nares, Esq.  
Fisher, Byrjalsen & Kreizer, PLLC  
Attorney for Plaintiff  
291 Broadway, Suite 709  
New York, NY 10007  
(212) 962-0848

Defendants' Addresses:

City of New York  
100 Church Street  
New York, NY 10007

Detective Alexander Kalogiros (Shield No. 4913)  
Narcotics Borough Manhattan North Command  
New York City Police Department Headquarters  
One Police Plaza  
Madison Street  
New York, New York 10038

Detective Ivan Rodriguez (Shield No. 3235)  
Narcotics Borough Manhattan North Command  
New York City Police Department Headquarters  
One Police Plaza  
Madison Street  
New York, New York 10038

Detective Thomas Pesick (Shield No. 7024)  
Narcotics Borough Manhattan North Command  
New York City Police Department Headquarters  
One Police Plaza  
Madison Street  
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

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JOEL POLANCO,

Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE ALEXANDER KALOGIROS (Shield No 4913),  
DETECTIVE IVAN RODRIGUEZ (Shield No. 3235), DETECTIVE THOMAS PESICK  
(Shield No. 7024), and OFFICERS JOHN DOE, individually and in their official capacities,

Defendants.

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SUMMONS

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**FISHER, BYRIALSEN & KREIZER, PLLC**  
**Attorneys for: Plaintiff**  
**291 Broadway, Suite 709**  
**New York, NY 10007**  
**(212) 962-0848**

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Service of a copy of the within is hereby admitted

Dated: June 23, 2014

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